

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
CATHERINE AYALA,

Plaintiff,

- against -

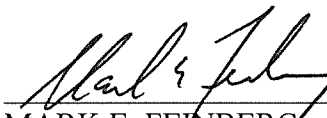
CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER MICHAEL SEIGER
(Tax No. 952225), POLICE OFFICER "JOHN DOE 1"
and POLICE OFFICER "JOHN DOE 2" (the last two
names being fictitious and intended to represent Police
Officers at the scene of the occurrence),Defendants.
-----X

Index No.

Date Purchased:

Plaintiff Designates
KINGS COUNTY
as the Place of Trial.**S U M M O N S**The Basis of Venue Is:
Place of OccurrencePlaintiff Resides at:
645 Miller Avenue
Brooklyn, New York 11207**TO THE ABOVE-NAMED DEFENDANTS:**

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance, on Plaintiff's Attorneys, within **Twenty (20) Days** after the service of this Summons, exclusive of the day of service (or within **Thirty (30) Days** after service is complete, if this Summons is not personally delivered to you within the State of New York). Should you fail to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: Brooklyn, New York
June 28, 2017
MARK E. FEINBERG
Attorney for the Plaintiff
142 Joralemon Street
Brooklyn, New York 11201
(718) 855-0009**DEFENDANTS' ADDRESSES:**City of New York, 100 Church Street, New York, NY 10007
New York City Police Department, 1 Police Plaza, New York, NY 10007
Police Officer Michael Seiger (Tax No. 952225), 75th Pct., 1000 Sutter Avenue, Brooklyn, NY 11208

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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CATHERINE AYALA,

Plaintiff,

- against -

Index No.

Date Purchased:

VERIFIED COMPLAINT

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER MICHAEL SEIGER
(Tax No. 952225), POLICE OFFICER "JOHN DOE 1"
and POLICE OFFICER "JOHN DOE 2" (the last
two names being fictitious and intended to represent
Police Officers at the scene of the occurrence),

Defendants.
-----X

The plaintiff, CATHERINE AYALA, by her attorney, MARK E. FEINBERG,
respectfully alleges as follows:

FIRST: At the time of the commencement of this action, and at all times herein
mentioned, the plaintiff was an individual and a resident of the County of Kings, City and State
of New York.

SECOND: All events and/or conduct which form the basis of this claim occurred within
the County of Kings, City and State of New York.

THIRD: Upon information and belief, at all times herein mentioned the defendant,
CITY OF NEW YORK (hereinafter respectfully referred to as defendant, "CITY"), was and still
is a Municipal Corporation, organized under and existing pursuant to the Laws of the State of
New York.

FOURTH: Upon information and belief, at all times herein mentioned, the defendant, NEW YORK CITY POLICE DEPARTMENT (hereinafter respectfully referred to as the defendant, NYCPD) was owned and/or operated by the defendant, CITY.

FIFTH: On December 16, 2016, prior to the commencement of this action, the plaintiff presented a Notice of Claim in writing to the City of New York for the adjustment of the injuries hereinafter set forth, stating in her Notice of Claim the time and place where and the manner in which the injuries were sustained, and stating also the plaintiff's intention to commence this action.

SIXTH: On December 16, 2016, prior to the commencement of this action, the plaintiff presented a Notice of Claim in writing to the New York City Police Department for the adjustment of the injuries hereinafter set forth, stating in her Notice of Claim the time and place where and the manner in which the injuries were sustained, and stating also the plaintiff's intention to commence this action.

SEVENTH: Each Notice of Claim was presented within ninety (90) days from the accrual of the plaintiff's causes of action and this action is commenced within one (1) year and ninety (90) days after the causes of action accrued. More than thirty (30) days have elapsed since the presentation of the Notices of Claim and the defendants, CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, have failed to make an adjustment or payment of the claim.

EIGHTH: On Thursday, June 15, 2017, prior to the commencement of this action the plaintiff appeared at and submitted to an examination under oath pursuant to Section 50-h of the General Municipal Law.

NINTH: Upon information and belief, at all times herein mentioned, the defendant, POLICE OFFICER MICHAEL SEIGER (Tax No. 952225), was an employee, agent and/or servant of the defendant, CITY.

TENTH: Upon information and belief, at all times herein mentioned, the defendant, POLICE OFFICER MICHAEL SEIGER (Tax No. 952225), was an employee, agent and/or servant of the defendant, NYCPD.

ELEVENTH: Upon information and belief, at all times herein mentioned, the defendant, POLICE OFFICER "JOHN DOE 1", was an employee, agent and/or servant of the defendant, CITY.

TWELFTH: Upon information and belief, at all times herein mentioned, the defendant, POLICE OFFICER "JOHN DOE 1", was an employee, agent and/or servant of the defendant, NYCPD.

THIRTEENTH: Upon information and belief, at all times herein mentioned, the defendant, POLICE OFFICER "JOHN DOE 2", was an employee, agent and/or servant of the defendant, CITY.

FOURTEENTH: Upon information and belief, at all times herein mentioned, the defendant, POLICE OFFICER "JOHN DOE 2", was an employee, agent and/or servant of the defendant, NYCPD.

FIFTEENTH: On Tuesday, October 18, 2016, the plaintiff, CATHERINE AYALA, having been arrested (arrest number K16674917-N) was incarcerated at the 75th Precinct, located at Brooklyn, New York, upon information and belief, owned and operated by the defendant, NEW YORK CITY POLICE DEPARTMENT. Prior to her confinement the plaintiff was

unlawfully assaulted, confined and harassed. The plaintiff was injured by New York City Police Officers, including POLICE OFFICER MICHAEL SEIGER (Tax No. 952225) and POLICE OFFICERS "JOHN DOE 1" and "JOHN DOE 2". The plaintiff was unlawfully assaulted, confined and harassed by New York City Police Officers who, upon information and belief, were employed by the defendant, NEW YORK CITY POLICE DEPARTMENT, which is owned and operated by the defendant, CITY OF NEW YORK. The defendants' conduct was negligent and/or knowingly intentional.

SIXTEENTH: At the time and place as aforesaid, the defendants, POLICE OFFICER MICHAEL SEIGER (Tax No. 952225), and POLICE OFFICERS "JOHN DOE 1" and "JOHN DOE 2". did wilfully and intentionally threaten, confine, assault and approach the plaintiff as a part of their employment by the defendant, NYCPD.

SEVENTEENTH: At the time and place as aforesaid, the defendants, POLICE OFFICER MICHAEL SEIGER (Tax No. 952225), did wilfully and intentionally commit assault and battery upon the plaintiff, CATHERINE AYALA.

EIGHTEENTH: At the time and place as aforesaid, the defendant, POLICE OFFICER "JOHN DOE 1", did wilfully and intentionally commit assault and battery upon the plaintiff, CATHERINE AYALA.

NINETEENTH: At the time and place as aforesaid, the defendant, POLICE OFFICER "JOHN DOE 2", did wilfully and intentionally commit assault and battery upon the plaintiff, CATHERINE AYALA.

TWENTIETH: That the defendants, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER MICHAEL SEIGER (Tax No. 952225), and

POLICE OFFICERS “JOHN DOE 1” and “JOHN DOE 2”, did intentionally, negligently, wrongfully, unlawfully, maliciously and without any provocation on the part of the plaintiff, caused the plaintiff to be confined, threatened, approached, assaulted, battered and injured.

TWENTY-FIRST: The actions of the defendants were without legal justification or probable cause, and were not privileged.

TWENTY-SECOND: As a consequence of the conduct of the defendants, the plaintiff was caused to, and did, sustain severe personal injuries.

TWENTY-THIRD: The plaintiff, CATHERINE AYALA, sustained injuries as a consequence of the conduct of the defendants, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER MICHAEL SEIGER (Tax No. 952225) and POLICE OFFICERS “JOHN DOE 1” and “JOHN DOE 2”: in negligently and/or intentionally causing, allowing and/or permitting the plaintiff to be assaulted, approached, accosted, battered, confined and/or injured; in failing to use reasonable care to prevent the assault and battery of the plaintiff; in unlawfully, maliciously and without provocation causing the plaintiff to be threatened, approached, accosted and assaulted; in causing the plaintiff to be injured; in that the defendants failed to use due care and caution with regard to the civil rights of the plaintiff; in violating the plaintiff’s rights to life and liberty as guaranteed under the law; in failing to warn the plaintiff of the impending assault and battery; in unreasonably exposing the plaintiff to assaultive acts which resulted in injury to the plaintiff; in failing to properly retain, train and/or supervise POLICE OFFICER MICHAEL SEIGER (Tax No. 952225) and POLICE OFFICERS “JOHN DOE 1” and “JOHN DOE 2”; in failing to supervise and/or improperly supervising POLICE OFFICER MICHAEL SEIGER (Tax No. 952225) and POLICE OFFICERS “JOHN

DOE 1” and “JOHN DOE 2”; in improperly confining the plaintiff; in unlawfully jeopardizing the plaintiff’s employment; in abusing claimed police powers; in claiming lawful police powers and then failing to comply with the applicable laws, rules and regulations; in unlawfully stopping, detaining and/or confining the plaintiff; in unlawfully entering and/or searching the plaintiff’s residence; in that the defendants either failed to implement proper rules and regulations to control its “police” and/or in negligently supervising and retaining and training its “police”; and, in otherwise being negligent, all without any negligence on the part of the plaintiff.

TWENTY-FOURTH: That the foregoing was caused without any negligence or culpable conduct on the part of the plaintiff.

TWENTY-FIFTH: That as a result of the foregoing, the plaintiff suffered mental anguish and physical injury.

TWENTY-SIXTH: That as a result of the foregoing, the plaintiff has been severely and permanently damaged, and, accordingly, seeks appropriate recompense.

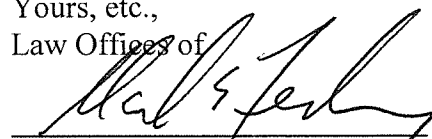
TWENTY-SEVENTH: That as a result of the foregoing, the plaintiff has been damaged in amounts which exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

TWENTY-EIGHTH: Upon information and belief, this action falls within one or more of the exceptions set forth in C.P.L.R. Section 1602.

WHEREFORE, the plaintiff, CATHERINE AYALA, demands a judgement against the defendants, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER MICHAEL SEIGER (Tax No. 952225) and POLICE OFFICERS “JOHN DOE 1” and

"JOHN DOE 2" (the name "JOHN DOE" being the fictitious last names of employees and/or agents of NEW YORK CITY POLICE DEPARTMENT), together with costs and interest in a sum which exceeds the limits of all lower courts which may have had jurisdiction over this matter.

Yours, etc.,
Law Offices of



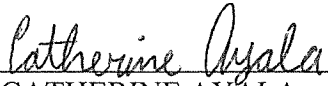
MARK E. FEINBERG

Attorney for the Plaintiff
142 Joralemon Street, 5th Floor
Brooklyn, New York 11201
(718) 855-0009

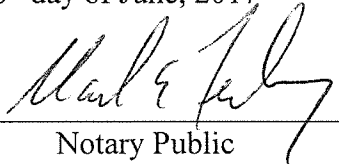
VERIFICATION

STATE OF NEW YORK)
)ss.:
COUNTY OF KINGS)

CATHERINE AYALA, being duly sworn, deposes and says, that she is the plaintiff in the within action; that she has read the foregoing Complaint and knows the contents thereof; that the same is true to her own knowledge, except as to the matters therein stated to be alleged on information and belief, and, as to those matters, she believes them to be true.


CATHERINE AYALA

Sworn to before me this
28th day of June, 2017


Notary Public

MARK E. FEINBERG
Notary Public, State of New York
No. 02FE4803761
Qualified in Kings County
Commission Expires December 31, 20 18

SUPREME COURT
STATE OF NEW YORK, COUNTY OF KINGS

Index No.

Year

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being fictitious and intended to represent Police Officers at the scene of the occurrence),

Defendants.

SUMMONS AND VERIFIED COMPLAINT

LAW OFFICES OF MARK E. FEINBERG

Attorney(s) for

Plaintiff

Office and Post Office Address, Telephone

142 JORALEMON STREET, 5TH FLOOR
BROOKLYN, NEW YORK 11201
(718) 855-0009

To

Signature (Rule 130-1.1.a)

Print name beneath

MARK E. FEINBERG

Service of a copy of the within is hereby admitted.

Attorney(s) for

Dated: _____

PLEASE TAKE NOTICE:

☐ NOTICE OF ENTRY

that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on

☐ NOTICE OF SETTLEMENT

that an order
will be presented for settlement to the HON.
within named Court, at

on

at

M.

Dated,

of which the within is a true copy
one of the judges of the

Yours, etc.

LAW OFFICES OF MARK E. FEINBERG